3344-63-01 Classified employee personnel policies.

(A) Scope.

This Chapter of the Administrative Code applies to non-bargaining classified employees. Classified employees represented by a union are subject to the applicable collective bargaining agreements. This Chapter applies to represented employees to the extent that the relevant collective bargaining agreement does not address an issue.

(B) Authority.

The Cleveland state university department of human resources is responsible for all phases of the personnel program for classified staff members. This includes the administration and interpretation of laws and regulations pertaining to the State of Ohio civil service system, as well as the establishment and interpretation of university human resources policies.

(C) Equal employment opportunity

Cleveland state university is committed to the principle of equal opportunity in employment and education. No person will be denied opportunity for employment or education or be subject to discrimination in any project, program or activity because of race, sex (including pregnancy), religion, color, age, national origin, veteran and/or military status, genetic information, disability, sexual orientation, gender identity or expression, marital status or parental status. Complaints of unlawful discrimination are filed with the office for institutional equity.

(D) Safety.

The university and its employees have a mutual interest in maintaining a safe working environment. The university promotes safe work practices on the job, and employees must observe safety rules and report unsafe conditions to supervisors. An employee who is involved in an accident, or who is injured on the job, is required to report the incident to the supervisor as soon as possible.

(E) Drug-free workplace.

(1) In an effort to protect the safety and well-being of the members of the campus community, Cleveland state university addresses substance abuse incidents in accord with the federal Drug Free Workplace Act. The university is committed to providing a rehabilitative and supportive approach for employees with substance abuse issues and when appropriate, to permit continued employment while receiving treatment for substance abuse issues.

(2) Possession, use, offering or being under the influence of alcohol or drugs,

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as defined in the university's substance abuse testing procedures, is prohibited. Violations will result in sanctions against the employee up to and including employment termination.

(3) Any employee who tests positive for drugs or a blood alcohol level of 0.02 or greater will be terminated unless the university decides in its sole discretion that it is appropriate to offer the employee a last chance agreement (LCA) and the employee agrees to comply with its terms.

(4) Refusal by an employee to submit to a substance test and/or to authorize disclosure of the test results to the university as required by these protocols shall be deemed to have tested positive. As such, the employee will not be eligible for an LCA and may be subject to immediate employment termination.

(5) An employee who refuses, evades, or delays testing, or tampers with the testing devices or samples, including dilution of samples, will be subject to immediate employment termination. The full description of the university's substance abuse testing procedures can be found on the human resources department website.

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3344-63-02 Employment at Cleveland state university.

(A) Selection procedures

(1) Classified positions at the university are filled through a competitive process. The process may include a written examination, test of skills, or an interview in the department of human resources or the hiring department. The process is designed to measure the knowledge, fitness, skills, abilities and worker characteristics necessary for successful performance on the job.

(2) The procedures at CSU have been established to provide equal employment opportunity. Because each applicant must be ranked according to the same basis of comparison, it is essential that each applicant undergo all of the processes currently required for a particular position.

(B) Job change or promotion

(1) Employees who seek advancement are encouraged to do so through available the competitive selection process at the university. In order to be considered for a vacant position, employees must apply for posted vacancies in the online position management and recruitment system.

(2) When a position becomes available, human resources recruitment will post the notice of position vacancy. A current CSU employee can apply for listed positions during the application period. Employees who apply for the vacancy, meet the minimum education, training, and experience requirements, and pass all criteria within the recruitment process, will be considered for the vacancy. Employees must have a current, satisfactory performance evaluation on file in human resources, indicating that the employee's overall performance meets standards.

(3) A current employee may be allowed necessary time off the job for interviews at CSU, without loss of pay, when an interview is scheduled during the workday (up to two interviews during any one calendar year). Employees may use vacation or compensatory time if needed for additional interviews at CSU. The employee's supervisor must approve the release time.

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(4) If an employee is selected for a new position, it is the employee's responsibility to notify his or her current supervisor. The department of human resources will coordinate the date of transfer.

(5) Promotion compensation. A promotion constitutes advancement to a job with greater duties and responsibilities in a higher pay grade.

An employee who is promoted shall receive an increase of five percent in base pay, but not less than the minimum of the new pay range, whichever is greater.

(C) Lateral transfer.

A lateral transfer is movement of an employee from one classified position to another in the same pay grade through position audit or the competitive selection process. An employee who transfers from one position to another in the same pay grade shall suffer no loss in pay due to the transfer.

(D) Demotion.

A demotion is the movement of an employee from a position in one classification to a position in a classification with a lower pay range through position audit or the competitive selection process. When an employee is demoted, the employee will receive a five percent decrease in pay rate. If the top of the new pay range is less than the five percent decrease, the maximum pay rate of the new pay range will be applied.

(E) Probationary period.

(1) When an external applicant is hired, or when a non-bargaining unit employee successfully competes for a promotion, a probationary period of one hundred and eighty days must be completed before such appointment is considered final. In most cases the probationary period is computed in calendar days beginning on the date of hire. Intermittent employees (those who are not assigned a regular, fixed schedule) serve a probationary period, which is computed on an "hours worked" basis.

(2) The probationary period provides employees with the opportunity to learn the duties of the new position and to demonstrate that the duties and responsibilities of the position can be undertaken satisfactorily. The employee's job performance is evaluated twice prior to completion of the probationary period. However, if a new employee receives an unsatisfactory performance rating, the department may request a probationary separation prior to the completion of the probationary period. If within thirty days of starting in the new position, an employee who has been promoted is unable to fulfill the responsibilities of the new classification, a demotion to the former position or similar classification may be allowed, at management's sole discretion.

(3) Probationary evaluations must be conducted at the midpoint of the probationary period and one month prior to the end. An employee who receives a probationary separation is not eligible for consideration for rehire for one year unless deemed eligible by the department of human resources.

(F) Position duties and classification.

(1) The duties of a classified position are determined and assigned by the supervisor or department head. A summary of these duties and the recommended classification are contained in the most recent audit report prepared by the department of human resources. However, over a period of time, these duties may change.

(2) Changes in the regular job duties of a position sometimes result in a change in the recommended classification of the position. On other occasions the changes involve duties which fall within the scope of the current classification.

(3) Few positions require the entire variety of job duties appropriate to their classifications. Likewise, many positions require some duties which are also contained in other classifications. On occasion, temporary job duties will be assigned for such reasons as a shortage of staff, a reduction of regular duties, or a temporary increase in workload. Such changes do not affect the classification of a position. A classification is not reduced when temporary duties appropriate to a lower classification are assigned. Similarly, a classification is not increased when temporary duties appropriate to a higher classification are assigned.

(4) An employee who is temporarily assigned to all the duties of a position with a higher pay range than their own is eligible for a temporary pay adjustment. Entitlement to the temporary pay adjustment depends upon the amount of continuous time the employee performs the temporary duties. The employee will receive a five percent adjustment above the current base pay rate, or an adjustment to the minimum rate of the pay range of the temporary position, whichever is greater. An employee temporarily assuming a professional staff classification will receive a five percent adjustment above their current base rate of pay, or an adjustment to the minimum rate of the professional staff position wage scale, whichever is greater.

(G) Performance evaluation.

(1) Performance evaluations are a part of employees' permanent record. Performance evaluations are completed twice during employees' probationary period and annually thereafter.

(2) An evaluation contains an assessment of an employee's performance in specific areas of responsibility and conduct, and includes a portion for employee self-evaluation. The supervisor completes their evaluation of the employee's performance. Their comments are reviewed by the next level supervisor. The employee and supervisor then meet to discuss the evaluation.

(3) The evaluation serves the following purposes:

(a) It serves as a means of communication between employee and supervisor to establish annual goals, clarify standards of expected job performance, and the employee's continued development;

(b) It gives the supervisor and the employee an opportunity to discuss specific performance accomplishment problems and to set goals for improvement;

(c) It serves as the basis for merit increase eligibility.

(d) It forms a basis for a determination of promotion eligibility for an employee who wishes to participate in the university's internal promotion procedure. An overall rating of "2" or below makes an employee ineligible to be considered for other positions.

(H) Position audit.

(1) A position audit, also called a reclassification review, is a review of a classified employee's regularly assigned duties and responsibilities to determine whether the position is properly classified. To be eligible for a reclassification review, changes in duties must be significant, and they must be continuous or recurring. An employee must perform the new duties for a period of four months to be eligible for the reclassification review. An audit is not conducted for assignments of a temporary nature. A request for an audit of a position may be made not more than once in a twelve month period or by employees in probationary status.

(2) This review may be requested by the employee, or the employee's supervisor, by submitting a completed position audit/reclassification request form.

(3) A human resources staff member will conduct a job audit interview and prepare a draft job description for review by the employee and supervisor. Once all parties agree to the job description, human resources will evaluate the position. The job classification which most accurately describes the duties performed shall be assigned to the position.

(4) Potential outcomes of the reclassification process are: promotion to a higher grade, with a promotional increase; a lateral change (new title but no change in grade or pay); denial of request; or demotion. Any changes resulting from a reclassification request is effective the first pay of the period following the date of submission.

(5) The decision rendered on position audits for non-bargaining unit positions may be appealed to the state personnel board of review. Bargaining unit position decisions may be appealed through the grievance procedure.

(I) Pay rate adjustments.

Changes in the rate of pay for employees who are members of bargaining units are set through the collective bargaining process. The university's board of trustees authorizes compensation rates for employees who not members of a bargaining unit. Any pay rate adjustment shall only be given to individuals who are employed at the time the adjustment is made.

(1) Wage increases. The total salary pool for wage increases is distributed as a combination of across the board and merit increases. Merit increases are given at the sole discretion of the university and directly tied to the performance evaluation process. Employees must have completed at least six months of employment to be eligible for a merit increase, and the performance evaluation must have an overall rating of "Exceptional Performance" or "Excellent Performance" for an employee to receive a merit increase.

(2) Market adjustments. In order to maintain market competitiveness, or to aid in the recruitment or retention of employees, it may be necessary for the university to adjust pay rates. Such adjustments will be based on survey data or other facts documenting retention issues or the inability to recruit a qualified pool of applicants at current pay rates.

(3) Equity adjustments. An equity adjustment is a special salary action to correct an inequity that cannot be corrected within normal wage administration guidelines. This adjustment is used to react to sudden changes in the competitive market where the hiring rate of a new candidate may cause an internal inequity. An equity adjustment may be applied to an individual employee or a specific classification affected by the inequity.

(J) Resignation/Retirement.

An employee planning to resign or retire shall provide a written notice of intent to the employee's immediate supervisor at least thirty days before the end of service. Fewer than thirty days' notice may be given with approval from her/his supervisor and human resources.

(K) Lay off and recall.

(1) The provisions concerning layoff and recall for bargaining unit represented employees are specified in the applicable collective bargaining agreements.

(2) For non-bargaining represented employees, procedures shall conform

to the provisions set forth in the Revised Code.

(3) A layoff can occur for reasons such as lack of work, lack of funds, reorganization, efficiency of operation, or any other legitimate reason as determined by the university.

(4) Probationary employees shall be laid off first, followed by part-time employees, and then full-time regular employees. The order of lay-off is based on retention points (length of service within classification). An employee to be laid off may choose instead to displace (bump) an employee with fewer retention points in the same or a lower classification of the same series. Employees who have been laid off retain reinstatement rights for a period of one year from separation date.

(L) Progressive corrective action and discipline.

(1) Each university staff member is responsible for constructive self-awareness and self-discipline. These traits contribute to a cooperative working atmosphere in which employees can and do perform their duties efficiently.

(2) When an employee's performance or behavior requires correction, progressive action should be taken. Progressive corrective action may include verbal and written warnings, suspension, or termination of employment. Nothing limits the right of the university to bypass progressive corrective action and suspend or terminate an employee for any offense that, in the university's sole discretion, is of such a nature that use of progressive corrective action is not appropriate or warranted.

(3) Dismissal for cause: Employees may be dismissed for cause. The following list includes, but is not intended to be an all-inclusive list, of examples of cause that justify accelerated disciplinary action. Cause shall include, but is not limited to the examples listed below:

(a) Unsatisfactory performance or neglect of assigned duties and responsibilities;

(b) Violation of recognized standards of professional conduct or performance;

(c) Personal conduct that impedes the individual's proper fulfillment of assigned duties and responsibilities;

(d) Personal conduct that violates state or federal law including, but not limited to:

(i) The use of illegal substances or abuse of prescribed medications.

(ii) Possession of illegal substances, the illegal possession of drugs and medication for the purpose of the sale of those substances or drugs.

(iii) Sexual, ethnic, racial, or religious harassment, or any other harassment prohibited by law or university policy.

(e) Personal conduct that interferes with the operations of the university;

(f) Conviction of a crime as defined in section 2901.01 of the Revised Code, or a substantially equivalent offense under a municipal ordinance, which is committed on or affects persons or property of the university.

(g) Conviction of an infraction or crime which affects persons or property on the university campus, or any other infraction or crime that adversely affects performance of job duties and responsibilities.

(h) Concealing, falsifying, altering or removing university records, including electronic data records.

(i) Viewing, recording, copying, or otherwise using university records for which the individual does not have a business purpose to do so.

(j) Producing fraudulent or falsified credentials.

(4) Employees subject to potential disciplinary action at the suspension and termination levels will be offered an opportunity for a pre-disciplinary review hearing, to be conducted by the senior vice president for business affairs and finance, or designee. Suspensions and terminations must be authorized by the senior vice president for business affairs and finance, or designee.

(M) Appeal of disciplinary actions.

Bargaining unit employees may appeal an action through the grievance procedure, as specified in the applicable collective bargaining agreement. Non-bargaining unit employees may appeal certain disciplinary actions, in accordance with the procedures set forth by the state of Ohio state personnel board of review.

(N) Complaints.

(1) The university seeks to respond promptly to employee complaints in the interest of sound employee relations. Any employee who has a

complaint on the job should first discuss the matter with the immediate supervisor. If the problem is not resolved, the employee may consult with the department of human resources, or may proceed under the appropriate complaint resolution procedure.

(2) Any claims of unlawful discrimination or harassment under federal and state civil rights laws, regulations, executive orders or university policy shall not be processed through this complaint resolution procedure. Such claims will follow the procedures of the office for institutional equity.

(3) Complaint resolution procedures. A complaint processed through this resolution procedure is defined as a dispute or disagreement concerning the alleged misapplication, misinterpretation, or failure to comply with provision(s) of this policy document.

(4) Complaint resolution steps and process. The complaint resolution process is an internal fact finding procedure. As a result, parties may not have legal representation present at any step in the complaint process. The staff member may invite a support person (e.g., relative or friend) of his/her choice to attend meetings, but the person may not act as the staff member's representative or present argument on the member's behalf. The support person may only consult with the complainant.

(5) When complaints arise, the following procedure shall be followed.

(a) Pre-step**:** The staff member and his/her immediate supervisor shall meet to attempt to work out the complaint on an informal basis. If the complaint is not resolved under this informal method, the staff member shall proceed as follows.

(b) Step one. The staff member shall first present a written complaint to the staff member's department head, or designee, within ten working days of the event upon which the complaint is based. Within ten working days after receipt of the complaint, the department head, or designee, will schedule a meeting with the aggrieved classified staff member to discuss the complaint and listen to the complainant's explanation. Following the meeting, the department head, or designee, shall issue a written response to the complaint within ten working days.

(c) Step two. If the complaint is not satisfactorily resolved in step one, the aggrieved employee may file a written appeal with the assistant vice president for human resources, or designee, within ten working days after the receipt of the step one decision. The assistant vice president for human resources, or designee, will schedule a meeting with the aggrieved staff member, supervisor, department head and/or

other appropriate University personnel within ten working days after the receipt of the appeal and will render a written decision within ten working days after the close of the meeting. A copy of the written decision will be sent to the complainant. Such decision will be final.

(d) Step two of the complaint resolution procedures is the final step of the internal appeals process.

(O) Nepotism.

(1) Appointment, classification and promotion is based solely on appropriate qualifications and performance. Relationship by family, marriage, or partnership shall constitute neither an advantage nor a deterrent to appointment in the university, provided the individual meets and fulfills the appropriate appointment standards. It is not the intent of this policy to encourage the employment of relatives within the same unit, but rather to reemphasize the concept that the selection of personnel shall be solely on the basis of merit in accordance with the state of Ohio conflict of interest statutes.

(2) The university, on a full-time or part-time basis, may employ members of the same immediate family so long as neither family member is responsible for the decision to hire, supervise, direct, evaluate or make recommendation to merit increases for the other, or is in a position to influence those decisions.

(P) Uniforms.

An employee who is required to wear a uniform is provided uniforms. Generally, five uniforms remain in the possession of the employee during the period of active University employment. It is the responsibility of the employee to provide for the cleaning and repair of uniforms. Unserviceable uniforms are replaced at the discretion of the University. Uniforms must be returned upon the employee's termination of employment.

3344-63-03 Pay procedures and hours of work.

(A) Pay periods.

The university's pay period consists of two weeks starting on Sunday and ending on the second Saturday; paydays occur on alternate Fridays following the end of the pay period.

(B) Paychecks.

All employees are required to have their paychecks automatically deposited directly into their bank account.

(C) Payroll deductions.

There are certain deductions which, by law, the university must withhold from a paycheck. These deductions are for federal, state, and municipal income taxes, Medicare tax and for the Ohio public employees retirement system. As an added service, other deductions are possible, in accordance with university policy.

(D) Working hours.

The standard work week for full-time employees is forty hours with an unpaid lunch. Work schedules are determined by management and based upon university requirements.

(E) Breaks and lunch periods.

Typically, employees working a shift of eight hours or more should receive two paid fifteen minute breaks to be taken at times chosen by the employee's supervisor. Employees working a shift of eight hours or more shall be entitled to an unpaid lunch period of not less than thirty minutes to be taken at a time scheduled by the employee's supervisor. No employee may skip his/her lunch period without prior supervisor approval.

(F) Overtime.

(1) When necessary, a full-time classified employee may be required to work more than forty hours during a work week (Sunday through Saturday). Each department determines procedures regarding the advance assignment and approval of overtime hours. All hours in active pay status in excess of forty within a work week shall be paid at the rate of time and one-half the employee's regular rate of pay or in the form of compensatory time. The selection of compensatory time or overtime premium pay shall be determined by the employee's supervisor based on the operational needs of the department, unit, or college.

(2) An employee may accumulate no more than two hundred and forty hours of compensatory time (four hundred and eighty hours for

police officers). When an employee's compensatory time balance exceeds the limit, the employee is entitled to receive payment for any additional hours of overtime accumulated. There is a one hundred and eighty day time limit to use compensatory time. The use of accumulated compensatory time shall be used at a time which is mutually convenient to the employee and his/her supervisor. Such a request may be denied where use of the accrued compensatory time would unduly burden the department. An employee's use of compensatory time shall not be used in calculating overtime compensation.

3344-63-04 Types of leave.

(A) Holiday observance.

(1) The ten paid holidays granted university employees are:

(a) New Year's day

(b) Martin Luther King day

(c) Presidents' day

(d) Memorial day

(e) Independence day

(f) Labor day

(g) Columbus day

(h) Veterans' day

(i) Thanksgiving day

(j) Christmas day

(k) A holiday falling on Sunday will be observed on the following Monday, and a holiday falling on Saturday will be observed on the preceding Friday. Employees will be notified if any changes occur.

(l) The administration may establish alternative days or observance for the following holidays: Martin Luther King day, President's day, and Columbus day.

(m) Full-time employees with work schedules other than Monday through Friday are entitled to receive pay for any holiday, which is observed on their day off.

(2) Holiday compensation. Full-time employees, regardless of their work shift or schedule, are automatically entitled to eight hours of holiday pay whether they work on the holiday or not, provided they are in active pay status for the entire shift on the scheduled work day immediately preceding and following the holiday. Part-time employees are entitled to holiday pay for that portion of any holiday for which they would normally have been scheduled to work, provided they are in active pay status for their entire shift on the scheduled work day immediately preceding and following the holiday.

(3) Compensation for working on a holiday will be at the time-and-one-half rate and will be in addition to their holiday pay. Compensatory time off may be mutually agreed to by the supervisor and employee as

the method of compensation for work performed on a holiday.

(4) Holiday overtime calculation. When calculating overtime for a calendar week that includes a holiday, the automatic hours of holiday pay will be used in the calculation of overtime. However, any hours actually worked on the holiday will not be included in the calculation for overtime because these hours will already be paid at the premium holiday rate.

(5) Holidays during leave. If a holiday occurs during a period of paid sick or vacation leave, the employee will receive holiday pay and will not be charged for sick leave or vacation. Payment will not be made for a holiday that occurs during an unpaid leave of absence. A leave of absence should neither start nor end on a holiday.

(6) An employee who is absent without leave on a workday immediately preceding and following a holiday is denied the holiday pay.

(B) Vacation leave.

(1) Full-time classified non-bargaining staff members are eligible to use earned vacation leave after completing one year of service at CSU. Upon completing the one year service requirement, eighty hours are added to the employee's vacation accrual. The staff member continues to earn vacation leave at a rate that is based on years of service at the university. Full-time staff who have unpaid hours within a pay period earn vacation on a pro-rated basis. Classified part-time staff appointed to a position of one-half time or more will earn vacation leave on a prorated basis. Staff members appointed at less than one-half time will not earn vacation leave.

(2) Full-time classified staff earn vacation leave based on their years of paid public service with Cleveland state university, the state of Ohio, or one of its political subdivisions, as follows:

Completed Service years:	Weeks (Hours):	Accrual per 80 hours active pay status
1 through 7	2 weeks (80 hours)	3.1 hours
8 through 14	3 weeks (120 hours)	4.6 hours
15 through 24	4 weeks (160 hours)	6.2 hours
25 and over	5 weeks (200 hours)	7.7 hours

(3) After completion of the eighth year of service, an additional forty hours of vacation is entered into the vacation accrual. Then employees begin to accrue at the higher rate, 4.6 hours. Upon completion of fifteen and twenty- five years of service, an additional forty hours of vacation is entered into the vacation accrual, and employees accrue at the rate of 6.2 and 7.7 hours, respectively.

(4) Vacation requests. Vacation leave should be scheduled at a time

mutually convenient to the employee and the supervisor. Leave shall be available to the employee to the extent earned, provided that the employee's supervisor or unit head approves the dates for such leave in advance. When a holiday occurs during vacation leave, employees receive their normal pay for the holiday; the pay is not charged to vacation leave.

(5) Annual carryover limit. Classified non-bargaining staff members may carry over from the last full pay period in the month of June to the beginning of the succeeding pay period, a maximum of thirty days (two hundred and forty hours) of accumulated vacation leave. This vacation leave carryover limitation does not apply to employees who, as of June 30, 1995 had more than eighteen years of continuous service at Cleveland state university. A carryover exemption does not apply to the accrual limits for unused vacation throughout the upcoming fiscal year, or payout of unused vacation hours at separation or retirement.

(6) Non-bargaining unit members may accrue up to the maximum amount earned in three years, subject to the thirty- day maximum carry over. At no time may the number of accumulated vacation hours exceed the number of hours earned in a three-year period.

(7) Payout upon termination or retirement. Upon termination of employment, employees who have completed one year of service at Cleveland state university are entitled to payment for earned but unused vacation time to a maximum of three years of vacation accrual. Vacation time may not be taken to exhaust accrued vacation hours subsequent to notice of resignation or retirement of employment from the university.

(C) Sick leave.

(1) Sick leave with pay is a benefit available during absence due to personal routine medical care, illness, injury, or exposure to contagious disease; for the illness or medical attention of a member of the immediate family; or death of a member of the immediate family. The immediate family includes mother, father, brother, sister, spouse, daughter, son, mother-in-law, father-in-law, brother-in-law, sister-in-law, daughter-in-law, son-in-law, grandparent, grandchild, registered same-sex domestic partner/spouse, dependents of a registered same-sex domestic partner/spouse legal guardian, stepparent, stepchild or other person who stands in place of a parent.

(2) Bereavement leave: Up to five days of accumulated sick leave may be used for bereavement in the event of the death of a member of the immediate family.

(3) Accrual and utilization. The provisions for normal accrual and utilization of sick leave benefits are:

(a) Accrual: Sick leave credit will accumulate at a rate of 4.6 hours per eighty hours of service without limit, and including periods of vacation and sick and other paid leave. Staff on less than full-time appointments shall receive sick leave credits proportionate to the percent of time or hours worked.

(b) Transfer of sick credit from other public or state employers: If a staff member transfers from another state of Ohio agency to Cleveland state university, accumulated sick leave credits will transfer to the extent allowed by law. The former employer of the staff member transferring credits from another state of Ohio agency or public employer must furnish proof to the university, in writing, of sick leave credits.

(c) Approval of sick leave requests: For planned absences, the staff member must notify the appropriate supervisor and gain prior approval. For unplanned absences, the payment of sick leave will be made with the approval of the appropriate supervisor. Sick leave may be used in tenths of an hour. Employees need to report their absences daily and in accordance with their departments' call off procedures. Sick leave may not be used for vacation purposes or for personal business. Falsification of the reason for sick leave usage may be grounds for disciplinary action including dismissal.

(d) The university reserves the right to require proper evidence of illness in cases of planned and unplanned absence and prolonged or repeated absence. The university will ordinarily not require such evidence in the case of illness or injury of less than five days' duration except in the case of employees who frequently take sick leave for one to five days and the employee has been so notified in writing.

(4) Exhaustion of paid sick leave: If the absence due to the employee's illness or injury or immediate family member extends beyond the availability of accrued sick leave, the staff member may request the use of accrued vacation leave and compensatory time.

(5) Sick leave may not be taken to exhaust accrued sick leave hours subsequent to notice of resignation or retirement of employment from the university.

(D) Medical leaves of absence.

(1) Family and Medical Leave Act. The university complies with the requirements of the Family and Medical Leave Act of 1993 (FMLA). The university retains the right to implement regulatory technical corrections as necessary. The department of human resources shall develop guidelines for eligibility and the use of FMLA leave.

(a) The Family and Medical Leave Act provides eligible employees with up to twelve weeks (four hundred and eighty hours) of leave for certain family and medical reasons. Cleveland state university requires employees to substitute any available accrued sick leave, accrued vacation leave, or compensatory time (comp time) in this stated order of priority, for any unpaid FMLA leave. Substitution of paid leave for unpaid FMLA leave does not extend the length of FMLA leave. Paid leave will run concurrently with the employee's FMLA entitlement.

(b) Extension of leave beyond FMLA: Staff may request additional leave of absence to continue leave beyond the twelve week FMLA leave period not to exceed six months from the date sick leave is exhausted.

(2) Non-FMLA medical leave. Staff members who do not qualify for FMLA may apply for the following continuous leaves of absence for their own medical needs:

(a) Medical Leave: Employees who are injured, physically incapacitated, or unable to work for other medical reasons may apply for and shall be granted a medical leave of absence, the duration of which is based on medical necessity as determined by the university's leave administrator. The University will require certification of the medical necessity for the leave. Medical leave may not exceed six months.

(b) Timely application for leave: Whenever possible a written request for the leave should be made at least thirty days prior to commencement of the leave, although in emergency situations, leave can be approved retroactively.

(c) Leave Request: Employees must notify their supervisor of their intent to apply for leave. An employee's request for a leave of absence should be submitted in writing to the department of human resources benefits accompanied by medical certification.

(d) Paid Leave: Staff members must use accrued sick leave to the extent that it is available. Once accrued sick leave is exhausted, accrued vacation leave and compensatory time (comp time) must be used if available.

(e) Non-paid leave: Unpaid leave may be taken if accrued

sick leave, vacation leave, and comp time are not available or exhausted.

(E) Personal leave

(1) Non-paid leave**.** An employee who has completed one full year of service may request an unpaid leave of absence up to six months for personal reasons. Such a leave may be granted by the department of human resources upon recommendation by the employee's department head.

(2) Military leave. Cleveland state university will comply with the appropriate federal and state statutes, codes, and regulations pertaining to military leave and the return to work.

(3) Jury duty. An employee who is subpoenaed to attend court proceedings as a witness (not as a party) or to serve on jury duty for the United States, the state of Ohio, or a political subdivision will receive full pay from the university for regular work hours.

3344-63-05 Benefits.

(A) Retirement plans (mandatory plans).

All Cleveland State University employees must contribute to a program of the Ohio public employees retirement system (OPERS) or the alternative retirement plan (ARP) for eligible full-time classified staff. Employee and employer contribution percentages are determined by the state of Ohio.

(1) OPERS Benefits

The OPERS plan in which employees participate and the contribution rates to those plans are determined by employees' classifications at CSU and State legislation. OPERS provides detailed information for their plans on their website.

(2) Ohio alternative retirement plan (ARP)

(a) The ARP is a 401(a) defined contribution plan. Under a defined contribution plan, retirement contributions are directed to a personal account. Eligible full-time staff members choosing the ARP must establish a CSU ARP account selected from companies approved by the Ohio department of higher education and contracted by CSU. Employees decide how to invest the funds in those accounts. The benefit is determined by the value of the account balance (contributions plus earnings, gains, or losses) and the payment option selected at retirement. Employees are vested after one year of service.

(b) Upon leaving the university, employees may take their vested account balance, either by receiving it in cash, keeping the funds in the account, or rolling the funds into another tax-advantaged plan or individual retirement account.

(B) Tax deferred retirement savings plans (voluntary plans).

(1) Federal and state tax provisions allow non-profit educational institutions and public employers to offer voluntary retirement savings plans (403(b) or 457 plan). These tax-deferred retirement savings plans allow employees to voluntarily contribute pre-tax pay to an account established with one of the university's approved retirement plan investment providers. Because these programs provide pre-tax retirement savings, the IRS has established rules as to when the funds can be withdrawn from the plan prior to retirement age.

(2) Each tax year, the IRS establishes annual contribution limits for both the 403(b) and 457 retirement savings plans. Employees may start or stop participation in these programs at any time during the year.

(3) Representatives of prospective and approved investment providers of the University are not permitted to solicit business by phone, in person, email or mail at the university, or contact employees during scheduled work hours.

(C) Disability. If a staff member experiences a disabling condition due to illness or injury for a period that is expected to extend beyond ninety days, the staff member may apply for disability benefit through the university's disability administrator or the State Retirement System.

(D) Disability separation and disability retirement. An employee who becomes incapable of performing the duties of his or her position may be granted disability benefits through the State of Ohio retirement system and/or the University's disability administrator. University paid life insurance will be continued for up to three years while the employee is on a disability separation. Medical, dental, and vision coverage (if enrolled on the date of separation) may be available for purchase through COBRA continuation coverage provisions.

(E) Vikehealth and well-being program.

(1) Cleveland state university believes that health and well-being are important priorities in helping the university community enjoy a better quality of life at work, at home, and when retired. The university's vikehealth and well-being program provides the university community with tools and resources to accomplish their personal wellness goals through a wide range of resources.

(2) The University offers incentives to faculty and staff for voluntary participation in the vikehealth & well- being program. Faculty and staff must work at least twenty hours per week, with an appointment of six months or longer, to qualify for the vikehealth & well-being incentives.

(F) Staff development programs and policies. The staff development program at Cleveland state university is an educational assistance program for full-time and part-time employees. The department of human resources shall develop guidelines for eligibility and the implementation of the staff development program.

(G) Student fee authorization program for dependents. The student fee authorization program at Cleveland State University is an educational assistance program available for dependents of eligible full-time and part-time classified staff. The department of human resources shall develop guidelines for the implementation of the student fee authorization program.

(H) Sick leave payout.

(1) Payout upon retirement. Classified non-bargaining staff members who, at the time of service retirement or disability retirement, have ten or more years of service with Cleveland State University and any other Ohio public employer shall be compensated in an amount not to exceed one-fourth the value of accrued but unused sick leave credit up to two hundred and forty hours based on their rate of hourly pay at the time of retirement. Requests for payout must be made prior to the employee's last day worked.

(2) Payout upon death: In the event of death, the university shall pay out one-fourth the value of accrued but unused sick leave credit up to two hundred and forty hours based on the employee's hourly rate of pay at the time of death.

(3) Maximum payout and cancellation of credit: The maximum sick leave payout upon retirement, disability, or death shall be one quarter of the unused sick leave balance up to two hundred and forty hours. Payment for sick leave under this policy reduces the employee's sick leave credit balance to zero. Individuals may receive only one payout as a result of their public employment.